

AL
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----x
ADRIAN FONT,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. "JAMES DOE" (fictitious
name meant to designate police officer who permitted
injury to plaintiff, and P.O. "JOHN DOE" (fictitious name
meant to designate police officer who permitted injury
to plaintiff).

Defendants.
-----x

Index No.:

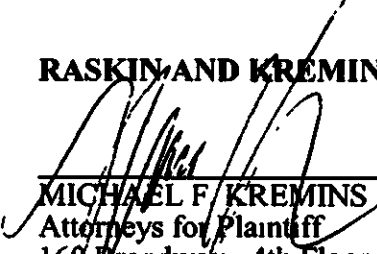
SUMMONS

**Plaintiff designates Bronx
County as Place of Trial.
The basis of venue is location of
occurrence. Occurrence took
place in front of 1131 Pugsley
Avenue, Bronx, New York 10472.**

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve
a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of
Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this Summons,
exclusive of the date of service (or within thirty (30) days after the service is complete if this
Summons is not personally delivered to you within the State of New York); and in case of your
failure to appear or answer, judgment will be taken against you by default for the relief demanded
in the Complaint with interest and cost from the date of occurrence.

Dated: New York, New York
July 15, 2009

RASKIN AND KREMS, L.L.P.



MICHAEL F. KREMS
Attorneys for Plaintiff
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434
Our File No.: N-3923

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DEFENDANTS' ADDRESSES:

NEW YORK CITY
Corporation Counsel
100 Church Street
New York, New York 10007

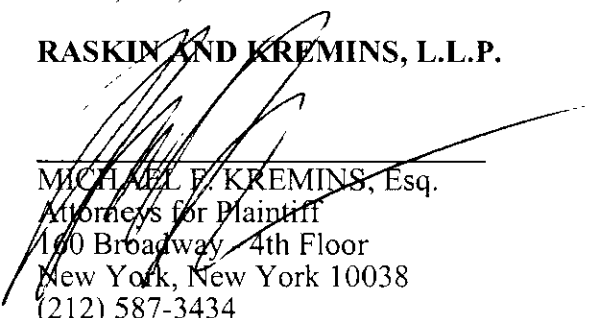
NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, Room 1406
New York, New York 10038

DOE" and P.O. "JOHN DOE," in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated : New York, New York
July 15, 2009

Yours, etc.,

RASKIN AND KREMINS, L.L.P.



MICHAEL F. KREMINS, Esq.

Attorneys for Plaintiff

160 Broadway 4th Floor

New York, New York 10038

(212) 587-3434

Our File No.: N-3923

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ADRIAN FONT,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. "JAMES DOE"(fictitious
name meant to designate police officer who permitted
injury to plaintiff, and P.O. "JOHN DOE"(fictitious name
meant to designate police officer who permitted injury
to plaintiff),

Defendants.
-----X

PLAINTIFF, ADRIAN FONT, by his attorneys, RASKIN AND KREMINS, L.L.P.,
complaining of defendants, upon information and belief, respectfully allege as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, plaintiff, ADRIAN FONT, was and is a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned, defendants, P.O. "JAMES DOE" and P.O. "JOHN DOE" were employed by defendant, THE CITY OF NEW YORK.
5. That at all times hereinafter mentioned, defendants, P.O. "JAMES DOE" and P.O. "JOHN DOE" were employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
6. That on the 27th day of March, 2009, a Notice of Claim was duly served upon the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT pursuant to Section 50-H of the General Municipal Law.

7. That plaintiff has complied with all conditions precedent to the commencement of this action, and in particular, within ninety (90) days of this occurrence, plaintiff has served a Notice of Claim with defendants, more than thirty (30) days have elapsed since the presentation of his claim, and plaintiff may otherwise commence this action because defendants have failed to demand oral examination of plaintiff pursuant to Section 50-H of the General Municipal Law and more than ninety (90) days have elapsed since the presentation of plaintiff's claim.

8. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, have neglected and/or refused to make adjustments or payment pursuant to plaintiff's claim and that less than one year and ninety (90) days have elapsed since the accrual of the cause of action herein set forth.

9. That at all times hereinafter mentioned, defendant, P.O. "JAMES DOE", was a member of THE NEW YORK CITY POLICE DEPARTMENT and acting within the scope of his employment.

10. That at all times hereinafter mentioned, defendant, P.O. "JOHN DOE", was a member of THE NEW YORK CITY POLICE DEPARTMENT and acting within the scope of his employment.

11. That on or about January 9, 2009, at approximately 2:25 P.M., defendant P.O. "JAMES DOE" came to be present in front of 1131 Pugsley Avenue at or near its intersection with Naviland Avenue, County of Bronx, City and State of New York, during the normal course of his employment with defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.

12. That on or about January 9, 2009, at approximately 2:25 P.M., defendant P.O. "JOHN DOE" came to be present in front of 1131 Pugsley Avenue at or near its intersection with Naviland Avenue, County of Bronx, City and State of New York, during the normal course of his employment with defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.

13. That on or about January 9, 2009, at approximately 2:25 P.M., plaintiff was lawfully present in front of 1131 Pugsley Avenue at or near its intersection with Naviland Avenue, County of Bronx, City and State of New York.

14. That on or about January 9, 2009, at approximately 2:25 P.M., as a result of the wrongful, willful, reckless, careless and negligent acts of defendants herein, their agents, servants and/or employees, plaintiff sustained severe and permanent personal injuries.

15. That the foregoing occurred solely and wholly as a result of the negligence of defendants herein, their agents servants and/or employees, and without any negligence on the part of the plaintiff contributing thereto.

16. That the defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees; in negligently and carelessly failing to direct their agents, servants and/or employees not to use improper force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing plaintiff to be assaulted, traumatized, shocked, pushed, shoved, tackled, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained to use improper force; in negligently and carelessly using improper force; in negligently and carelessly failing to adequately train police officers and/or other personnel for the public's safety, including plaintiff herein; and in being otherwise careless and negligent.

17. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries and will continue to be so injured for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits

of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

18. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "17" of the complaint herein with the same force and effect as if set forth herein at length.

19. That the defendants, P.O. "JAMES DOE" and P.O. "JOHN DOE," acting under the color of authority and without provocation, viciously and maliciously attacked the plaintiff causing him to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering; and causing plaintiff to require and continue to require hospitalization, medical care and treatment.

20. That the defendants, P.O. "JAMES DOE" and P.O. "JOHN DOE," acting under the color of authority and without provocation, viciously and maliciously assaulted and battered the plaintiff causing him to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering; and causing plaintiff to require and continue to require hospitalization, medical care and treatment.

21. That the defendants, P.O. "JAMES DOE" and P.O. "JOHN DOE," acting under the color of authority and without provocation, viciously and maliciously falsely arrested the plaintiff, wrongfully depriving plaintiff of his liberty.

22. That the plaintiff was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

23. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned the plaintiff for approximately ten (10) hours, wrongfully depriving plaintiff of his liberty.

24. That the plaintiff was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

25. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries and will continue to be so injured for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "25" of the complaint herein with the same force and effect as if set forth herein at length.

27. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty interests guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.

28. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty interests guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 6 of the Constitution of the State of New York; and that said acts of defendants violated applicable laws of the City of New York.

29. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries and will continue to be so injured for some time to come; plaintiff will expend significant sums of money for required

medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "29" of the complaint herein with the same force and effect as if set forth herein at length.

31. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's right to equal protection under the law guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.

32. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's right to equal protection under the law guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 11 of the Constitution of the State of New York; and that said acts of defendants violated applicable laws of the City of New York.

33. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries and will continue to be so injured for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "33" of the complaint herein with the same force and effect as if set forth herein at length.

35. That by reason of the foregoing acts and/or omissions of defendants in violation of the Fourteenth Amendment to the United States Constitution, plaintiff has been forced to bring this lawsuit to enforce 42 U.S.C. § 1983 and as a result thereof has suffered significant economic loss in the form of attorney's fees.

36. That pursuant to 42 U.S.C. § 1983, plaintiff is entitled to reasonable attorney's fees as part of costs.

AS AND FOR A SIXTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "36" of the complaint herein with the same force and effect as if set forth herein at length.

38. That at all times herein after mentioned, defendants, without cause or justification, did intentionally inflict emotional distress upon plaintiff, causing plaintiff to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

39. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, plaintiff ADRIAN FONT demands judgment against defendants,
THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. "JAMES

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF NEW YORK)

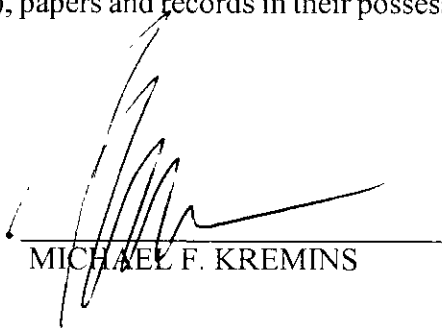
MICHAEL F. KREMINS, affirms under the penalties of perjury the following:

I am a member of **RASKIN & KREMINS, L.L.P.**, attorneys for plaintiff(s) herein.

That I have read and know the contents of the foregoing **COMPLAINT** that the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters he believes it be true.

That the reason why this verification is made by your affirmant instead of by the Plaintiff(s) is because the Plaintiff(s) is not within the County of New York, which is the County where your affirmant has his office. Your affirmant further says that the grounds of the belief as to all matters in the said **COMPLAINT** are statements of said Plaintiff(s), papers and records in their possession, and a general investigation of the facts of this case.

Dated: New York, New York
July 15, 2009



MICHAEL F. KREMINS